

Avula Yamuna vs Neeli Venkata Naresh Babu on 12 August, 2025

HIGH COURT OF ANDHRA PRADESH AT AMARAVATI

MAIN CASE No.Tr.C.M.P.No.252 of 2025
PROCEEDING SHEET

Sl. No.	DATE	ORDER	OFFICE NOTE
01.	12.08.2025	VGKR, J	

I.A.No.1 of 2025

Heard learned counsel for the petitioner.

Learned counsel for the petitioner contend that the petitioner is none other than the wife of the respondent/husband, due to

the matrimonial disputes between both the spouses, the petitioner/wife has been residing separately at her parents' house at Jammalamadugu, Y.S.R. Kadapa District.

Learned counsel for the petitioner would further contend that, the petitioner/wife filed a petition vide H.M.O.P.No.80 of 2023 on the file of the Senior Civil Judge, Proddutur, under Section 9 of the Hindu Marriage Act, 1955, seeking for restitution of conjugal rights and she also filed another two (2) cases i.e., Maintenance Case vide M.C.No.6 of 2023 on the file of the Judicial Magistrate of First Class, Jammalamadugu, under Section 125 of Cr.P.C., seeking monthly maintenance from the respondent/husband and Domestic Violence Case vide D.V.C.No.8 of 2023 on the file of the Judicial Magistrate of First Class, Jammalamadugu, Y.S.R. Kadapa District, the said three (3) cases are pending for adjudication and the respondent/husband is also attending the case proceedings before the competent Courts at Proddutur and Jammalamadugu respectively.

Learned counsel for the petitioner would further contend that to cause inconvenience to the petitioner/wife, the respondent/husband had filed F.C.O.P.No.23 of 2023, on the file of the Judge, Family Court, Kadapa, under Section 12(1)(c) of the Hindu Marriage Act, 1955, seeking for dissolution of the marriage and the same is also pending for adjudication.

Learned counsel for the petitioner would further contend that the petitioner/wife has been residing separately and depending upon the mercy of her parents at Jammalamadugu, it is very difficult for her to travel to attend the divorce case proceedings before the Judge, Family Court, Kadapa, on each and every adjournment without any male support and that she is constrained to file the present transfer petition.

Perused the record.

Considering the submissions made by the learned counsel for the petitioner and for the reasons mentioned in the accompanying affidavit, there shall be an Interim Stay of all further proceedings including the appearance of the petitioner herein i.e., the respondent in F.C.O.P.No.23 of 2023, on the file of the Judge, Family Court, Kadapa, till 12.09.2025.

Learned counsel for the petitioner is permitted to take out personal notice to the respondent through Registered Post with Acknowledgment Due and file proof of service before the Registry.

_____ VGKR, J Admit.

Issue notice to the respondent. Post the matter on 12.09.2025.

_____ VGKR, J CVD